

REPUBLIC~~ARTICLE I~~
DECLARATION **OF SOUTH AFRICA~~RIGHTS~~**



IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, JOHANNESBURG

CASE NUMBER: 10274/19

(1) <u>REPORTABLE: NO</u>
(2) <u>OF INTEREST TO OTHER JUDGES: NO</u>
(3) <u>REVISED</u>
<u>30 November 2021</u>

.....	
SIGNATURE	DATE

In the matter between:

JIYANE, MXOLISI ZIPHOZONKE Plaintiff

and

ROAD ACCIDENT FUND Defendant

Delivered: 30 November 2021 - This judgment was handed down electronically.

JUDGMENT

Karachi AJ:

Introduction

1. The plaintiff, a major male constable was injured in a motor vehicle accident on 29 June 2018. He has instituted a claim for damages against the defendant, the Road Accident Fund ("the RAF").
2. The merits of the claim were conceded 100% in favour of the plaintiff on 11 February 2019.
3. Due to all manner of delays occasioned by the RAF, the RAF's defence was struck out on 27 July 2019 and the issue of quantum proceeded by default. The matter was enrolled for hearing on the default judgment trial court roll on 27 October 2021 and was allocated to me for hearing on 3 November 2021.

The plaintiff's evidence

4. The plaintiff, is a major male constable, born on 4 August 1991.
5. The plaintiff was involved in a motor vehicle collision as a passenger, on 29 June 2018 wherein he sustained various injuries.
6. As a consequence of the injuries sustained, the plaintiff had to undergo medical treatment; will in future have to undergo medical treatment; suffered loss of earnings; and suffered a partial alternatively complete destruction of his income earning capacity.
7. As regards the plaintiff's claim for
 - 7.1. general damages, the RAF failed to exercise an election on whether or not to accept the plaintiff's RAF4 forms and as a result, the plaintiff requests that the court postpone the issue of general damages *sine die*;
 - 7.2. past medical expenses, at the hearing of this matter, counsel on behalf of the plaintiff submitted that the plaintiff has no claim in this regard;

7.3. future medical expenses, the plaintiff seeks an order directing the RAF to furnish the plaintiff with an undertaking for future treatment in terms of section 17(4)(a) of the Road Accident Fund Act, 56 of 1996; and

7.4. loss of earnings, the plaintiff claims R6 555 875,00.

8. The plaintiff sustained the following injuries in the accident:

8.1. Head injury with reported loss of consciousness at the scene but fully conscious upon arrival at the hospital;

8.2. Facial laceration – 3 cm on the forehead;

8.3. Cervical spine soft tissue injury;

8.4. Thoracic spine wedge compression T6 fracture;

8.5. Left knee soft-tissue injury.

9. The affidavits of the plaintiff's experts, Prof. Kelly, a neurosurgeon; Mr Rosen, an industrial psychologist; Ms Doran, an occupational therapist; Dr Volkersz, an orthopaedic surgeon; Dr Berkowitz, a plastic and reconstructive surgeon; Dr Samouri, a clinical psychologist; Dr Naidoo, a specialist psychologist and the plaintiff's actuary Mr Kramer were accepted as evidence in the trial.

The experts

(i) Dr Kelly – Neurosurgeon

10. Dr Kelly evaluated the plaintiff and is of the opinion that the plaintiff has a depressive disorder including a mild traumatic brain injury due to the injuries sustained in the accident.

11. Dr Kelly found that

11.1. Attention and memory problems were evident and deferred to the report of Dr Samouri, who confirmed impairments in both these areas of cognitive functioning;

11.2. A mood disorder was evident. Neuropsychological complications were found and deferred to the report of Dr Naidoo the psychiatrist who confirmed the finding;

11.3. Facial scar was clearly visible and disfiguring. Further assessment by a plastic surgeon was required;

11.4. Cervical spine examination demonstrated paraspinal muscle spasm and a decreased range of motion;

11.5. Thoracic spine examination demonstrated paraspinal muscle spasm and a reduced range of motion.

12. The plaintiff suffers from post-concussion headaches.

13. The plaintiff would not be able to compete effectively in the open labour market due to the following reasons: headaches, memory problems, mood disorder, facial scarring, cervical spine pain and thoracic spine pain.

(ii) Mr Rosen - Industrial psychologist

14. At the time of the accident, the plaintiff was employed as a constable in the South African Police Service at the Rosebank Police Station, where he was part of the crime prevention team.

15. The plaintiff was off work for about 2 weeks post-accident, after which he returned to work on light duty. The plaintiff continued to experience pain in his neck, headaches, backache and travel-related anxiety.

16. The plaintiff then applied to be moved to Jeppestown Police Station, where he began working as a personnel officer, in which position he continues to date.

17. The plaintiff however remains symptomatic and finds that he experiences chronic pain and depression.
18. The plaintiff enrolled for a diploma in policing at the Tshwane University of Technology but is not coping with his studies. The plaintiff is constantly fatigued owing to his inability to sleep properly at night due to the experience of pain.
19. The plaintiff continues to work in an accommodated post focused on administrative tasks as opposed to operational duties.
20. In terms of the psychological and physical assessment, the plaintiff recognises his physical constraints and is frustrated at not being able to perform at his previous levels of activity. He lost concentration and appeared markedly tired.
21. The plaintiff realises the extent of his injuries and feels that his life has changed since the accident. He specifically points to ongoing pain in his neck and back, particularly when standing or sitting for periods. Similarly, he becomes irritated and aggressive at times. Whilst he tries to cope, he is unable to perform his duties as he did prior to being injured. This has impacted on his work and has affected his aspirations of progressing as a police officer.
22. Mr Rosen noted and agreed with the observations of the other experts, including
 - 22.1. Dr Kelly, the neurosurgeon, that the plaintiff paid attention intermittently. That the plaintiff has memory problems and dysthymic mood. Is suffering from post-concussion headaches which will need conservative treatment.
 - 22.2. Dr Naidoo, the psychologist who diagnosed the plaintiff with mild traumatic brain injury, neuropsychiatric sequelae due to multiple aetiologies, reactive depressive symptoms and travel related anxiety symptoms.
 - 22.3. Dr Samouri, the clinical psychologist who found that the plaintiff struggles with divided attention, has high levels of anxiety and presents with symptoms for Post-Traumatic Stress Disorder. The plaintiff's sleep patterns are disturbed due to chronic experience of pain which may have an impact on mood and anxiety. There are implications for memory and concentration and the plaintiff would be an unfair competitor in the open labour market.

- 22.4. Ms Doran, the occupational therapist, found that the plaintiff is optimally suited for tasks of a sedentary to light physical nature, where neither of these is exerted on a constant basis. This is compounded by the psychological difficulties. An intertwining relationship between the pain experienced by the plaintiff, and the depression, which has resulted in a vicious cycle of emotional distress and depression, as well as fatigue. In turn, there is increased vulnerability and compromise on his ability to sustain expected efficacy levels, even in a sedentary to light position, as to what he currently holds as well as securing of further qualifications to allow for promotional opportunities.
23. Mr Rosen is of the opinion that the plaintiff has been markedly affected by the accident and as a result, he has not been able to progress in his career path or tolerate the rigours of his previous work. Further, he is unable to pursue his aspirations to become a senior police officer.
24. Mr Rosen is of the opinion that, but for the accident, in light of the plaintiff's qualifications (National Diploma in HR Management as well as additional law enforcement qualifications) as well as the plaintiff's deep interest in law enforcement, it is anticipated that the plaintiff would have been promoted through the ranks as part of his planned career path.
25. Mr Rosen is further of the opinion that at the time of the accident, the plaintiff was on track towards promotion and would likely have been promoted to sergeant by 2021 with the associated earnings of approximately R343 838,00. The plaintiff would have spent approximately 3 to 5 years at this level before being considered for another promotion to the rank of warrant officer with commensurate earnings at this level. The plaintiff would have spent a further 5 years at this level before being considered for promotion to lieutenant. As the plaintiff would have spent at least approximately 7 years at the lieutenant level, Mr Rosen suggests ending the plaintiff's projections at this level.
26. Mr Rosen obtained collateral information from Colonel Meredith, the plaintiff's supervisor, who confirmed the various physical and psychological difficulties experienced by the plaintiff post-accident. In summary, she confirms that the plaintiff continues in an accommodated, office-bound post since he cannot cope with the physical requirements of his pre-accident position. As such, the plaintiff has suffered a loss of earnings due to not being able to earn overtime and danger pay. Even in an

accommodated state, the plaintiff still suffers from physical and psychological constraints, is unlikely to obtain promotion in the future, should his present situation remain the same. Colonel Meredith confirmed that the potential promotion opportunities have now been limited.

27. Mr Rosen concludes that the plaintiff's career path has been halted and that there is a very real possibility of a limited future in the South African Police Service. That the plaintiff's physical and psychological constraints will hamper his ability to find alternative work. Although he will not be unemployable, the plaintiff will need to seek sedentary work. He is of the opinion that the plaintiff will be a vulnerable employee or work seeker in the open labour market and he is of the view that plaintiff will experience large periods of unemployment and remuneration at lower levels.

28. These factors can be taken into account by the application of a higher post-accident contingency deduction, over and above the factual difference between pre- and post-accident.

(iii) Ms Doran – Occupational therapist

29. Ms Doran confirmed that the ongoing pain and discomfort suffered in the plaintiff's spine negatively impacts on the plaintiff's ability to sustain tasks of a constant light nature or greater.

30. The plaintiff would be optimally suited for tasks of a sedentary to light nature, where neither of these is exerted on a constant basis to sustain the expected efficacy levels correlating with the change in his work duties post-accident.

31. The plaintiff demonstrated fluctuating concentration levels.

32. Ms Doran deferred to the Industrial Psychologist to comment on the loss of any earnings incurred due to accident injuries.

(iv) Dr Volkersz – Orthopaedic surgeon

33. Dr Volkersz confirmed that the plaintiff sustained a head injury, a soft tissue injury to his cervical spine with persistent right arm symptoms and a fracture of the sixth dorsal vertebra.

(v) Dr Berkowitz – Plastic and reconstructive surgeon

34. Dr Berkowitz, the plastic and reconstructive surgeon confirms that the plaintiff has reached maximum medical improvement.

(vi) Dr Samouri – Clinical psychologist

35. Dr Samouri found that the plaintiff is experiencing high levels of anxiety since the accident, presents with symptoms for Post-Traumatic Stress Disorder and is experiencing a low depressive mood at times since the accident.

36. The plaintiff's experience of chronic pain has resulted in him having to alter his social, physical and emotional behaviour.

37. Since the accident the plaintiff experiences stress and anxiety when he travels.

38. The above-mentioned disturbances cause clinically significant distress and impairment in social, psycho-social and occupational functioning.

39. From the Clinical Interview and by his own account of functioning, the plaintiff can be diagnosed with a Depressive Disorder and Post Traumatic Stress Disorder.

40. The plaintiff's sleep patterns are disturbed due to chronic experience of pain which results in him not being able to feel fully rested. Chronic interrupted sleep may have an impact on mood and anxiety.

41. From a physical perspective it appears that the accident has had a restrictive impact on his functioning compared to previous levels of functioning and the plaintiff would struggle with executive functioning.

42. Although he reports no pre-morbid cognitive limitations, the current testing administered indicates that the plaintiff has experienced a drop in cognitive functioning. He struggles with his attention and concentration and his current levels of anxiety and depressive symptoms could result in him presenting with inadequate ability to maintain adequate attention and concentration which resulted in the low scores obtained.

43. The plaintiff currently has a job which is sedentary in nature which accommodates him since the injuries sustained in the accident. However, should he not be able to hold on to his employment, the plaintiff would be an unfair competitor in the open labour market with his cognitive level of functioning and his restricted range of movement. His pre-morbid abilities are estimated to have been average range at least. His current functioning indicates that he would generally struggle with the basic factors for memory. This would negatively impact him within the work space as he would at times during his day struggle with optimal attention and concentration which may lead to poor work performance. Behaviourally, he may be at risk of de-motivation and lack of commitment due to not being able to follow his work commitments with the same efficiency and determination as before the injury.
44. It seems unlikely that he will be able to secure work in the open labour market (as he would have been able to) if the accident had not taken place.
45. From the plaintiff's account of work history, he had to stop working in Visible Policing and find a more sedentary position to accommodate him. He has noted that he is unable to maintain the necessary attention and concentration required as he could before the accident and injuries sustained. The testing administered supports inadequate memory functions. This could result in experiencing problems in the work place as he may not always remember instruction given which could result in him producing incomplete tasks further causing him anxiety with regard to holding on to his employment.
46. It would benefit the plaintiff to consult with a clinical psychologist to help manage his anxiety, low mood and poor self-concept.
47. It is likely that there may be presentation of future cycling of exacerbations and remissions of the psychological condition as stressors arise and provision should be made for this.
48. The plaintiff could also benefit from seeing a psychiatrist who would be able to further help manage his low mood and anxiety so as to help improve his general state of affective functioning.
49. The plaintiff could also benefit from seeing a functional physiotherapist to further assist him with pain management.

50. The plaintiff feels that he was cheated by the accident. He was unable to continue working active duty for Visible Policing. His social life has been affected. He struggles to run and lift heavy objects. He is no longer able to engage in sports activities like he could prior to the injuries sustained.

(vii) Dr Naidoo – Specialist psychologist

51. Dr Naidoo diagnosed the plaintiff as suffering from a depressive disorder due to injuries sustained in the accident in question (including traumatic brain injury) with some travel related anxiety symptoms.

(viii) Mr Kramer – Actuary

52. An actuarial calculation was obtained in line with Mr Rosen's report.

53. After applying a 15% contingency deduction in respect of the plaintiff's prospective earnings but for the accident and a 40% contingency deduction in respect of the plaintiff's prospective earnings having regard to the accident, the total loss according to the actuarial calculation amounts to R6 555 875,00.

Evaluation

54. In order to assess the plaintiff's future loss of earnings a comparison should be made between what he would have earned pre-morbid and what he is likely to earn post-morbid.

55. Experts are frequently called in to assist the courts, but courts are not bound by the opinions of experts. It is the duty of the expert to furnish the court with the necessary scientific criteria for testing the accuracy of the expert's conclusions so as to enable it to form an independent judgment by the application of these criteria to the facts.

56. No doubt, the determination of contingencies is a process of subjective impression or estimation. The application of contingencies is largely arbitrary and depends on the court's impression of the case. The future is uncertain and it is difficult to judge how a person's career prospects may change over a considerable period of time what other factors may influence the career, either positively or negatively. The facts and all

relevant circumstances must be considered as best as possible in order to adjudicate the matter.

57. As a result of the accident, the plaintiff is a changed individual. He suffers from depression, anxiety and physical pain. The plaintiff has had to secure alternative sedentary work. He has suffered from a decrease in productivity. He is now more vulnerable and an unequal competitor in the open labour market. He is at a high risk of future unemployment. But for the accident, the plaintiff would have progressed in his career path. These factors and all other risks affecting his income should be taken into account.

58. I am therefore satisfied with the assumptions and the contingency deduction applied by the actuary to provide for the future uncertainties. I find that the amount as claimed is fair and reasonable compensation for the plaintiff in respect of loss of earnings.

Order

59. In the result, I make the following order:

59.1. The defendant shall pay to the plaintiff an amount of R 6 555 875. 00 in respect of loss of earnings together with interest a *tempore morae* calculated in accordance with the Prescribed Rate of interest Act 55 of 1975, read with section 17(3)(a) of the Road Accident Fund Act 56 of 1996;

59.2. Payment will be made directly to the trust account of the plaintiff's attorneys within one hundred and eighty (180) days: Holder De Broglio Attorneys Account Number 109 645 1867 Bank & Branch Nedbank – Northern Gauteng Code 198 765 Ref J290 3.

59.3. The defendant is ordered in terms of section 17(4)(a) of the Road Accident Fund Act 56 of 1996 to reimburse 100% of the plaintiff's costs of any future accommodation in a hospital or nursing home, or treatment or rendering of service to him or supplying goods to him arising out of injuries sustained by the plaintiff in the motor vehicle accident on which the cause of action is based, after such costs have been incurred and upon proof thereof.

59.4. The defendant is to pay the plaintiff's agreed or taxed High Court costs as between party and party, such costs to include the costs of 03 November 2021, the costs of the preparation and qualifying fees of the experts, consequent upon obtaining the plaintiff's reports to be served between the parties, the plaintiff's reasonable travel and accommodation costs to attend experts, and counsel. The plaintiff shall, in the event that the costs are not agreed serve the Notice of Taxation on the defendant's attorney of record; and the plaintiff shall allow the defendant fourteen (14) days to make payment of the taxed costs.

59.5. The issue of General Damages is postponed *sine die*.

59.6. There is no contingency fee agreement in existence between the plaintiff and his attorneys.

F KARACHI

ACTING JUDGE OF THE HIGH COURT

Appearances:

For the Plaintiff: Adv P J Van der Berg

For the Defendant: No appearance

Date of the hearing: 3 November 2021

Date of the judgment: 30 November 2021

Editor's Note

The amendment ratified by 1971 Act No 276 (1971 (57) 315) revised and rewrote this article, substituting present Section 1 to 23 for former Section 1 to 29. The amendment also transferred and renumbered the following sections of the former article: former Section 3 was transferred and renumbered as Section 1A of Article III; former Section 6 was transferred and renumbered as Section 3A of Article X; former Section 7 was transferred and renumbered as Section 3B of Article X; former Section 11 was transferred and renumbered as Section 1B of Article XVII; former Section 28 was transferred and renumbered as Section 4 of Article XIV. The provisions of former Section 9 of this article now appear in Section 1 of Article II, as amended by amendment ratified by 1971 Act No 277 (1971 (57) 319).

SECTION 1. Political power in people.

~~—All political power is vested in and derived from the people only, therefore, they have the right at all times to modify their form of government. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are identical to former Section 1 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see former Art I, Section 1.~~

SECTION 2. Religious freedom; freedom of speech; right of assembly and petition.

~~—The General Assembly shall make no law respecting an establishment of religion or prohibiting the free exercise thereof, or abridging the freedom of speech or of the press; or the right of the people peaceably to assemble and to petition the government or any department thereof for a redress of grievances. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are identical to former Section 4 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section Section 6, 7, 9, 10.~~

SECTION 3. Privileges and immunities; due process; equal protection of laws.

~~—The privileges and immunities of citizens of this State and of the United States under this Constitution shall not be abridged, nor shall any person be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are identical to former Section 5 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 12.~~

SECTION 4. Attainder; ex post facto laws; impairment of contracts; titles; effect of conviction.

~~—No bill of attainder, ex post facto law, law impairing the obligation of contracts, nor law granting any title of nobility or hereditary emolument, shall be passed, and no conviction shall work corruption of blood or forfeiture of estate. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are identical to former Section 8 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art 1, Section Section 4, 21.~~

SECTION 5. Elections, free and open.

~~—All elections shall be free and open, and every inhabitant of this State possessing the qualifications provided for in this Constitution shall have an equal right to elect officers and be elected to fill public office. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are identical to former Section 10 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 31.~~

~~SECTION 6. Residence.~~

~~—Temporary absence from the State shall not forfeit a residence once obtained. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are identical to former Section 12 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 35.~~

~~SECTION 7. Suspension of laws.~~

~~—The power to suspend the laws shall be exercised only by the General Assembly or by its authority in particular cases expressly provided for by it. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are similar to former Section 13 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 24.~~

~~SECTION 8. Separation of powers.~~

~~—In the government of this State, the legislative, executive, and judicial powers of the government shall be forever separate and distinct from each other, and no person or persons exercising the functions of one of said departments shall assume or discharge the duties of any other. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are identical to former Section 14 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 26.~~

~~SECTION 9. Courts; speedy remedy.~~

~~—All courts shall be public, and every person shall have speedy remedy therein for wrongs sustained. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are identical to former Section 15 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 15.~~

~~SECTION 10. Searches and seizures; invasions of privacy.~~

~~—The right of the people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures and unreasonable invasions of privacy shall not be violated, and no warrants shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, the person or thing to be seized, and the information to be obtained. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are similar to former Section 16 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 22.~~

~~SECTION 11. Presentment or indictment.~~

~~—No person may be held to answer for any crime the jurisdiction over which is not within the magistrate's court, unless on a presentment or indictment of a grand jury of the county where the crime has been committed, except in cases arising in the land or naval forces or in the militia when in actual service in time of war or public danger. The General Assembly may provide for the waiver of an indictment by the accused. Nothing contained in this Constitution is deemed to limit or prohibit the establishment by the General Assembly of a state grand jury with the authority to return indictments irrespective of the county where the crime has been committed and that other authority, including procedure, as the General Assembly may provide. (1970 (56) 2684; 1971 (57) 315; 1989 Act No. 5; 1989 Act No. 8.)~~

Editor's Note

~~The present provisions of this section are similar to former Section 17 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art 1, Section Section 18, 23.~~

~~SECTION 12. Double jeopardy; self incrimination.~~

~~—No person shall be subject for the same offense to be twice put in jeopardy of life or liberty, nor shall any person be compelled in any criminal case to be a witness against himself. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are similar to former Section 17 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art 1, Section Section 18, 23.~~

~~SECTION 13. Taking private property; economic development; remedy of blight.~~

~~—(A) Except as otherwise provided in this Constitution, private property shall not be taken for private use without the consent of the owner, nor for public use without just~~

~~compensation being first made for the property. Private property must not be condemned by eminent domain for any purpose or benefit including, but not limited to, the purpose or benefit of economic development, unless the condemnation is for public use.~~

~~—(B) For the limited purpose of the remedy of blight, the General Assembly may provide by law that private property constituting a danger to the safety and health of the community by reason of lack of ventilation, light, and sanitary facilities, dilapidation, deleterious land use, or any combination of these factors may be condemned by eminent domain without the consent of the owner and put to a public use or private use if just compensation is first made for the property. (1970 (56) 2684; 1971 (57) 315; 2007 Act No. 15.)~~

Editor's Note

~~The present provisions of this section are similar to former Section 17 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section Section 18, 23.~~

SECTION 14. Trial by jury; witnesses; defense.

~~—The right of trial by jury shall be preserved inviolate. Any person charged with an offense shall enjoy the right to a speedy and public trial by an impartial jury; to be fully informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to be fully heard in his defense by himself or by his counsel or by both. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are similar to former Section Section 18 and 25 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section Section 11, 13.~~

SECTION 15. Right of bail; excessive bail; cruel or unusual or corporal punishment; detention of witnesses.

~~—All persons shall be, before conviction, bailable by sufficient sureties, but bail may be denied to persons charged with capital offenses or offenses punishable by life imprisonment, or with violent offenses defined by the General Assembly, giving due weight to the evidence and to the nature and circumstances of the event. Excessive bail shall not be required, nor shall excessive fines be imposed, nor shall cruel, nor corporal, nor unusual punishment be inflicted, nor shall witnesses be unreasonably detained. (1970 (56) 2684; 1971 (57) 315; 1998 Act No. 259.)~~

SECTION 16. Libel.

~~—In all indictments or prosecutions for libel, the truth of the alleged libel may be given in evidence, and the jury shall be the judges of the law and facts. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are identical to former Section 21 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 8.~~

~~SECTION 17. Treason.~~

~~—Treason against the State shall consist alone in levying war or in giving aid and comfort to enemies against the State. No person shall be held guilty of treason, except upon testimony of at least two witnesses to the same overt act, or upon confession in open court. (1970 (56) 2684; 1971 (57) 315; 2007 Act No. 15.)~~

Editor's Note

~~The present provisions of the first paragraph of this section are identical to former Section 22 of Article I as it existed prior to the 1971 revision. It would seem that the intention of the 1973 amendments relating to slum clearance (1970 (57) 1340; 1973 (58) 123) was to add the provisos of the second and third paragraphs of this section to Section 17 of this article as it existed prior to the 1971 revision. Similar paragraphs were transferred to Section 5 of Article XIV by the 1971 amendment which revised this article.~~

~~SECTION 18. Suspension of habeas corpus.~~

~~—The privilege of the writ of habeas corpus shall not be suspended unless when, in case of insurrection, rebellion or invasion, the public safety may require it. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are identical to former Section 23 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 17.~~

~~SECTION 19. Imprisonment for debt.~~

~~—No person shall be imprisoned for debt except in cases of fraud. (1970 (56) 2684; 1971 (57) 315.)~~

Editor's Note

~~The present provisions of this section are identical to former Section 24 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 20.~~

~~SECTION 20. Right to keep and bear arms; armies; military power subordinate to civil authority; how soldiers quartered.~~

~~—A well regulated militia being necessary to the security of a free State, the right of the people to keep and bear arms shall not be infringed. As, in times of peace, armies are dangerous to liberty, they shall not be maintained without the consent of the General Assembly. The military power of the State shall always be held in subordination to the civil authority and be governed by it. No soldier shall in time of peace be quartered in~~

~~any house without the consent of the owner nor in time of war but in the manner prescribed by law. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are identical to former Section 26 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section Section 28, 29.~~

~~SECTION 21. Martial law.~~

~~—No person shall in any case be subject to martial law or to any pains or penalties by virtue of that law, except those employed in the armed forces of the United States, and except the militia in actual service, but by the authority of the General Assembly. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are similar to former Section 27 of Article I as it existed prior to the 1971 revision. For similar provisions in Constitution of 1868, see Const 1868, Art I, Section 25.~~

~~SECTION 22. Procedure before administrative agencies; judicial review.~~

~~—No person shall be finally bound by a judicial or quasi-judicial decision of an administrative agency affecting private rights except on due notice and an opportunity to be heard; nor shall he be subject to the same person for both prosecution and adjudication; nor shall he be deprived of liberty or property unless by a mode of procedure prescribed by the General Assembly, and he shall have in all such instances the right to judicial review. (1970 (56) 2684; 1971 (57) 315.)~~

~~SECTION 23. Provisions of Constitution mandatory.~~

~~—The provisions of the Constitution shall be taken, deemed, and construed to be mandatory and prohibitory, and not merely directory, except where expressly made directory or permissive by its own terms. (1970 (56) 2684; 1971 (57) 315.)~~

~~Editor's Note~~

~~The present provisions of this section are identical to former Section 29 of Article I as it existed prior to the 1971 revision.~~

~~SECTION 24. Victims' Bill of Rights.~~

~~—(A) To preserve and protect victims' rights to justice and due process regardless of race, sex, age, religion, or economic status, victims of crime have the right to:~~

~~—(1) be treated with fairness, respect, and dignity, and to be free from intimidation, harassment, or abuse, throughout the criminal and juvenile justice process, and informed of the victim's constitutional rights, provided by statute;~~

~~—(2) be reasonably informed when the accused or convicted person is arrested, released from custody, or has escaped;~~

~~—(3) be informed of and present at any criminal proceedings which are dispositive of the charges where the defendant has the right to be present;~~

~~—(4) be reasonably informed of and be allowed to submit either a written or oral statement at all hearings affecting bond or bail;~~
~~—(5) be heard at any proceeding involving a post-arrest release decision, a plea, or sentencing;~~
~~—(6) be reasonably protected from the accused or persons acting on his behalf throughout the criminal justice process;~~
~~—(7) confer with the prosecution, after the crime against the victim has been charged, before the trial or before any disposition and informed of the disposition;~~
~~—(8) have reasonable access after the conclusion of the criminal investigation to all documents relating to the crime against the victim before trial;~~
~~—(9) receive prompt and full restitution from the person or persons convicted of the criminal conduct that caused the victim's loss or injury, including both adult and juvenile offenders;~~
~~—(10) be informed of any proceeding when any post-conviction action is being considered, and be present at any post-conviction hearing involving a post-conviction release decision;~~
~~—(11) a reasonable disposition and prompt and final conclusion of the case;~~
~~—(12) have all rules governing criminal procedure and the admissibility of evidence in all criminal proceedings protect victims' rights and have these rules subject to amendment or repeal by the legislature to ensure protection of these rights.~~
~~—(B) Nothing in this section creates a civil cause of action on behalf of any person against any public employee, public agency, the State, or any agency responsible for the enforcement of rights and provision of services contained in this section. The rights created in this section may be subject to a writ of mandamus, to be issued by any justice of the Supreme Court or circuit court judge to require compliance by any public employee, public agency, the State, or any agency responsible for the enforcement of the rights and provisions of these services contained in this section, and a wilful failure to comply with a writ of mandamus is punishable as contempt.~~
~~—(C) For purposes of this section:~~
~~—(1) A victim's exercise of any right granted by this section is not grounds for dismissing any criminal proceeding or setting aside any conviction or sentence.~~
~~—(2) "Victim" means a person who suffers direct or threatened physical, psychological, or financial harm as the result of the commission or attempted commission of a crime against him. The term "victim" also includes the person's spouse, parent, child, or lawful representative of a crime victim who is deceased, who is a minor or who is incompetent or who was a homicide victim or who is physically or psychologically incapacitated.~~
~~—(3) The General Assembly has the authority to enact substantive and procedural laws to define, implement, preserve, and protect the rights guaranteed to victims by this section, including the authority to extend any of these rights to juvenile proceedings.~~
~~—(4) The enumeration in the Constitution of certain rights for victims shall not be construed to deny or disparage others granted by the General Assembly or retained by victims. (1998 Act No. 259.)~~

SECTION 25. Hunting and fishing.

~~—The traditions of hunting and fishing are valuable parts of the state’s heritage, important for conservation, and a protected means of managing nonthreatened wildlife. The citizens of this State have the right to hunt, fish, and harvest wildlife traditionally pursued, subject to laws and regulations promoting sound wildlife conservation and management as prescribed by the General Assembly. Nothing in this section shall be construed to abrogate any private property rights, existing state laws or regulations, or the state’s sovereignty over its natural resources.~~

~~HISTORY: 2011 Act No. 20, Section 1, eff May 5, 2011.~~

Editor’s Note

2011 Act No. 20, Section 1, provides in part:

~~“SECTION 1. The amendment to Article I of the Constitution of South Carolina, 1895, prepared under the terms of Joint Resolution 3483 of 2009, having been submitted to the qualified electors at the General Election of 2010 as prescribed in Section 1, Article XVI of the Constitution of South Carolina, 1895, and a favorable vote having been received on the amendment, is ratified and declared to be a part of the constitution so that Article I is amended by adding Section 25:”~~